

1 ENGROSSED SENATE
2 BILL NO. 1262

By: Gillespie of the Senate

3 and

4 May of the House
5

6 An Act relating to education; providing certain
7 tuition waiver for certain individuals who are
8 victims of certain offenses; limiting use of waiver
9 for certain time period; directing certain amount to
10 be awarded by allocation from the Oklahoma Higher
11 Learning Access Trust Fund; directing tuition waivers
12 to be awarded based on available funding and the
13 number of eligible students; providing for
14 promulgation of rules; amending 70 O.S. 2021, Section
15 3953.1, as amended by Section 4, Chapter 330, O.S.L.
16 2024 (70 O.S. Supp. 2025, Section 3953.1), which
17 relates to the Oklahoma Higher Learning Access Trust
18 Fund; expanding use of fund for certain purpose;
19 updating statutory references; updating statutory
20 language; providing for codification; providing an
21 effective date; and declaring an emergency.
22
23
24

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 3218.7-2 of Title 70, unless
19 there is created a duplication in numbering, reads as follows:

20 A. An individual who was a victim of human trafficking for
21 commercial sex or human trafficking for labor, as such terms are
22 defined in Section 748 of Title 21 of the Oklahoma Statutes, who was
23 under the age of eighteen (18) and a resident of this state and a
24

1 citizen of the United States at the time of the offense shall be
2 eligible for a waiver of:

3 1. Undergraduate resident tuition at an institution of higher
4 education within The Oklahoma State System of Higher Education; or

5 2. Tuition at a technology center school under the governance
6 of the State Board of Career and Technology Education.

7 B. A tuition waiver provided for in subsection A of this
8 section shall be limited to five (5) years.

9 C. Subject to the availability of funds, an amount equivalent
10 to the nonguaranteed resident tuition at an institution of higher
11 education within The Oklahoma State System of Higher Education or
12 the tuition for a career and technology program at a technology
13 center school under the governance of the State Board of Career and
14 Technology Education in which an eligible student is enrolled shall
15 be awarded by allocation from the Oklahoma Higher Learning Access
16 Trust Fund created pursuant to Section 3953.1 of Title 70 of the
17 Oklahoma Statutes. Tuition waivers granted pursuant to the
18 provisions of this section shall be awarded to all eligible students
19 without limitation other than the amount of funds available and the
20 number of eligible students.

21 D. The Oklahoma State Regents for Higher Education and the
22 State Board of Career and Technology Education shall promulgate
23 rules to implement the provisions of this section including, but not
24 limited to, tuition waiver application requirements and a process

1 for verifying eligibility for a tuition waiver with the Office of
2 the Attorney General.

3 SECTION 2. AMENDATORY 70 O.S. 2021, Section 3953.1, as
4 amended by Section 4, Chapter 330, O.S.L. 2024 (70 O.S. Supp. 2025,
5 Section 3953.1), is amended to read as follows:

6 Section 3953.1. A. There is hereby created a trust fund to be
7 known as the "Oklahoma Higher Learning Access Trust Fund". The
8 Oklahoma State Regents for Higher Education shall be the trustees of
9 the Trust Fund.

10 B. The State Regents shall utilize the Trust Fund to implement
11 the provisions of Sections 2601 through 2605 of this title ~~and,~~
12 Sections ~~±~~ 2501 through ~~±~~ 2503 of this ~~act~~ title, and Section 1 of
13 this act.

14 C. The Trust Fund principal shall consist of monies the
15 Legislature appropriates or transfers to the Oklahoma State Regents
16 for Higher Education for the Trust Fund and any monies or assets
17 contributed to the Trust Fund from any other source, public or
18 private. All monies accruing to the credit of the fund are hereby
19 appropriated and may be budgeted and expended by the State Regents.
20 Expenditures from the fund shall be made upon warrants issued by the
21 State Treasurer against claims filed as prescribed by law with the
22 Director of the Office of Management and Enterprise Services for
23 approval and payment.

1 D. Notwithstanding other provisions of law, income and
2 investment return on Trust Fund principal shall accrue to the Trust
3 Fund for use as provided by authorization of the trustees for the
4 purposes provided in Sections 2601 through 2605 of this title ~~and,~~
5 Sections ~~±~~ 2501 through ~~±~~ 2503 of this ~~act~~ title, and Section 1 of
6 this act. The State Regents may also utilize the Trust Fund
7 principal for the purposes provided in Sections 2601 through 2605 of
8 this title ~~and,~~ Sections ~~±~~ 2501 through ~~±~~ 2503 of this ~~act~~ title,
9 and Section 1 of this act. Except as otherwise provided by law, no
10 such income or investment return or principal shall be used for
11 administrative expenses; expenses incurred by the State Regents in
12 the administration of the Trust Fund and of the Oklahoma Higher
13 Learning Access Program established by the Oklahoma Higher Learning
14 Access Act ~~and,~~ the Oklahoma Access and Achievement Program
15 established by the Oklahoma Access and Achievement Act, and the
16 tuition waiver established by Section 1 of this act shall be paid
17 from monies appropriated to the State Regents coordinating board for
18 their general operating budget.

19 E. The State Regents shall adopt rules for accomplishing
20 transfer of funds from the Oklahoma Higher Learning Access Trust
21 Fund to the appropriate institutional Educational and General
22 Operations Revolving Funds, as provided in Section 3901 of this
23 title, to private institutions, and to the appropriate technology
24 center school ~~district~~ districts to cover general enrollment fees or

1 tuition for eligible students pursuant to the Oklahoma Higher
2 Learning Access Act and the Oklahoma Access and Achievement Act and
3 to cover tuition for eligible students pursuant to Section 1 of this
4 act. Allocations from the Trust Fund may be made only for the
5 purpose of covering the general enrollment fees or tuition of
6 eligible students. No portion of the Trust Fund may be used or
7 allocated for administrative or operating expenses of any higher
8 education institution or technology center school.

9 SECTION 3. This act shall become effective July 1, 2026.

10 SECTION 4. It being immediately necessary for the preservation
11 of the public peace, health, or safety, an emergency is hereby
12 declared to exist, by reason whereof this act shall take effect and
13 be in full force from and after its passage and approval.

14 Passed the Senate the 25th day of March, 2026.

15
16 _____
17 Presiding Officer of the Senate

18 Passed the House of Representatives the ____ day of _____,
19 2026.

20
21 _____
22 Presiding Officer of the House
23 of Representatives
24